

26NNCV03074 26NNCV03074

County: los-angeles

Division: Civil Law and Motion

Department: D

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Case Number: 26NNCV03074 Hearing Date: August 21, 2026 Dept: D

TENTATIVE RULING

Calendar: 6

Date: August 21, 2026

Case No: 26NNCV03074 Trial Date: Not yet set

Case Name: Khoury v. Pasaca Capital, Inc., et al.

APPLICATION TO BE ADMITTED PRO HAC VICE

[CRC rule 9.40]

Moving Party: Plaintiff, Najib Khoury

Responding Party: Defendants, Pasaca Capital, Inc. et al [Unopposed]

RELIEF REQUESTED:

Order permitting Vincenza Castiglione to appear in this action and be admitted to the bar of this Court pro hac vice.

CAUSES OF ACTION: from Complaint

1) Breach of Contract

2) Fraudulent Misrepresentation

3) Intentional Infliction of Emotional Distress

4) Constructive Wrongful Termination

5) Hostile Work Environment in Violation of FEHA

SUMMARY OF FACTS:

Plaintiff Najib Khoury ("Plaintiff") alleges that in 2021 he was hired as the Chief Executive Officer for Middle East and North Africa operations for Innova Medical Group ("Innova"). Innova is a subsidiary of Pasaca Capital, Inc. ("Pasaca"). Defendant Charles Huang ("Huang") is the co-founder, co-chairman and CEO of Pasaca. Defendant Lina Tullberg ("Tullberg") is the co-chairman of Innova and/or Pasaca. Plaintiff alleges that throughout his employment, he was subjected to a toxic, hostile and unsafe work environment orchestrated by Huang, with the active participation and enablement of Tullberg. Plaintiff alleges that Huang engaged in multiple extramarital affairs with married female employees, and that Huang facilitated these relationships. The Complaint alleges that these affairs created severe workplace disruptions and safety risks. Plaintiff alleges that Huang falsely represented that a female employee had embezzled money from the company and induced Plaintiff to locate her. The Complaint further alleges that Huang exhibited racial bias favoring Chinese hires, which created a discriminatory environment. Plaintiff resigned in May 2024.

ANALYSIS:

California Rules of Court ("CRC") rule 9.40 provides that an attorney in good standing in another jurisdiction may apply to appear pro hac vice in this State by way of written application upon due notice to all interested parties, as well as service on the State Bar in San Francisco with payment of the appropriate fee, provided that the attorney (a) is not a California resident, (b) does not work in California, and (c) does not perform regular or substantial business, professional or other activities in California.

An application for pro hac vice admission must set forth: (1) the applicant attorney's residence and office addresses; (2) the courts to which the applicant attorney has been admitted and dates of admission; (3) a representation that the attorney applicant is a member in good standing in the courts of admission and is not currently suspended or disbarred in any court; (4) the title of each court and action in which the applicant attorney has appeared pro hac vice in this State in the prior two years; and (5) the name, address and phone number of the active California State Bar member with whom the applicant is associated. (CRC, rule 9.40(d).)

Upon review, the Court finds that Castiglione has established that he satisfied the requirements to appear as counsel pro hac vice pursuant to CRC rule 9.40.

The Application sets forth (1) the applicant attorney's residence and office addresses; (2) the courts to which the applicant attorney has been admitted and dates of admission; (3) a representation that the attorney applicant is a member in good standing in the courts of admission and is not currently suspended or disbarred in any court; (4) the title of each court and action in which the applicant attorney has appeared pro hac vice in California in the prior two years; and (5) the name, address and phone number of the active California State Bar member with whom the applicant is associated. (Application, ¶¶ 2-11.)

The Application has been served on the State Bar in San Francisco with payment of the applicable fees. (Application, ¶¶ 11-12.)

Accordingly, the paperwork is in order and the Application is GRANTED.

RULING:

The Verified Application of Vincenza Castiglione to Appear Pro Hac Vice is GRANTED.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

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